

Judgment Sheet
IN THE LAHORE HIGH COURT, LAHORE.
JUDICIAL DEPARTMENT

Writ Petition No.16337/2015

Mohammad Iqbal
Versus
District Coordinator Officer/District Collector, Faisalabad etc.

JUDGMENT

Date of Hearings:	07.07.2015 & 14.07.2015.
Petitioner by:	Mr. Nadeem Shibli, Advocate.
Respondents No.1, 2, 4 to 7 by:	Rana Shamshad Khan, A.A.G.
Respondent No.3 by:	Mr. Muhammad Aslam Zar, Advocate.

CH. MUHAMMAD IQBAL, J:- Through this writ petition, the petitioner has challenged the orders dated 30.01.2014, 25.06.2014 and 30.04.2015 passed by the District Collector Faisalabad, the Commissioner Faisalabad Division, Faisalabad and the learned Member (Consolidation), Board of Revenue, Punjab respectively whereby respondent No.3 was appointed as Lambardar of Chak No.97/GB, Tehsil Jaranwala, District Faisalabad.

2. Brief facts of the case are that the post of Lambardar in Chak No.97/GB, Tehsil Jaranwala, District Faisalabad fell vacant due to the death of Muhammad Ayub, Lambardar. Permission to initiate the case to fill up the vacancy was accorded by the District Collector on 07.07.2010. In compliance with the said order, applications were invited by the Tehsildar from the willing candidates on or before 13.12.2010. Whereupon, 20 persons submitted their applications for

the said post and out of the above 20 candidates, 8 candidates withdrew their candidature while one candidate did not appear before the Tehsildar, therefore, his right was struck off by the Tehsildar. The Tehsildar summoned the rest of the candidates for recording their statements and after recording the statements of remaining 11 candidates, he recommended the name of the petitioner for appointment as Lambardar and submitted the case to the Assistant Commissioner, Jaranwala who by agreeing with the said recommendation forwarded the case to the District Collector. The District Collector fixed the case in Peshi. During the course of hearing, one Muhammad Usman Younas S/o Muhammad Younas presented an application for considering his name also for appointment of Lambardar and vide order dated 07.11.2013 the District Collector accepted the said application and returned the case to the AC, Jaranwala with the direction to complete the process alongwith other candidates as required under Rule 17 (2) of the Land Revenue Rules, 1968 within ten days. Thereafter, the District Collector, Faisalabad appointed respondent No.3 as a permanent Lambardar vide order dated 30.01.2014. Being aggrieved of the said order, the petitioner filed an appeal before the Commissioner, Faisalabad Division, Faisalabad who dismissed the same vide order dated 25.06.2014. Thereafter, the petitioner filed a revision petition bearing ROR No.1457/2014 before the learned Member (Consolidation), Board of Revenue, Punjab, Lahore which was also dismissed vide order dated 30.04.2015. Hence, this writ petition.

3. Learned counsel for the petitioner submits that last date for submission of applications for appointment as Lambardar was fixed as 13.12.2010; that respondent No.3 did not apply for the above said post before the cut off date rather filed on 09.06.2013 and that while passing the impugned orders, the Courts below did not consider the recommendations/reports submitted by the revenue hierarchy, as such, the impugned orders are illegal and liable to be set aside.

4. On the other hand, the learned counsel of respondent No.3 submits that the District Collector has the jurisdiction to entertain an application, if the same is filed at even belated stage, before passing any final order regarding the appointment of Lambardar, as such, the District Collector has rightly entertained the application of respondent No.3 filed on 19.06.2013; similarly, the Commissioner Faisalabad and the Member (Consolidation), Board of Revenue, Punjab, Lahore have rightly dismissed the appeal and revision petition of the petitioner and appointed respondent No.3 as Lambardar; that the petitioner is involved in criminal cases and in this regard FIRs were registered against him, as such, he is not eligible for his appointment as Lambardar.

5. Heard. Record perused.

6. It is an admitted fact that the applications for appointment of Lambardar in Chak No.96/GB, Tehsil Jaranwala, District Faisalabad were invited and last date for filing of applications was fixed as

13.12.2010 by the Tehsildar, Jaranwala. For the facility of ready reference, the notice of the Tehsildar is verbatim reproduced as under:-

بعدالت جناب تحصیلدار صاحب جڑانوالہ
 "عنوان: پروانہ مشتری منادی تقرری جدید عہدہ نمبر داری
 متوفی محمد ایوب نمبر دار، چک نمبر 97 گ ب
 تحصیل جڑانوالہ ضلع فیصل آباد۔
 گرد اور حلقہ بچیانہ
 مندرجہ عنوان بالا میں چک نمبر 97 گ ب میں وسیع پیمانہ پر مشتری
 منادی کروائی جائے کہ خواہشمند اشخاص برائے حصول جدید عہدہ نمبر داری اپنی
 اپنی درخواست ہائے عدالت ہذا میں مورخہ 13/12/10 تک پیش کریں۔
 بعد گزرنے میعاد کوئی عذر قابل قبول نہ ہوگا پروانہ مشتری منادی بعد تعمیل قبل از
 پیشی عدالت ہذا میں بھجوائی جائے۔ 26/11/10
 دستخط
 تحصیلدار جڑانوالہ"

It is also an admitted fact that respondent No.3 had not submitted his application for considering his name for the post of Lambardar on or before the cut off/last date for submission of the applications i.e. 13.12.2010, rather he on 19.06.2013 submitted his application before the District Collector i.e. after more than two years and six months from the expiry of last date for submission of applications. It is worth mentioning here that from the bare perusal of the application of Muhammad Usman Younas/respondent No.3, he has admitted that he is student of I.Com. and as per his identity card appended with this petition, his date of birth is 21.07.1994 whereas the terminus date for submission of application was 13.12.2010 and at that time his age was only 16 years 04 months and 22 days and was underage and was not eligible to apply for the post of Lambardar.

Even otherwise, he is considered as absentee from the village as his present address shown in the ID Card is that of Faisalabad City and he is not a full time resident of the said village and on this score alone he was not eligible to apply for the post of Lambardar on the terminus date.

Even otherwise, it is very much mentioned in the above quoted notice that the applications should be submitted before the Tehsildar on or before 13.12.2010 and after the expiry of said date, no objection will be entertained but contrarily respondent No.3 had submitted his application before the District Collector on 19.06.2013 without mentioning any solid, cogent and reasonable ground/explanation for submission of his application at belated stage, particularly, when the matter was matured for final order by the District Collector. Further, the District Collector has not mentioned any plausible reason in accepting this belated application. It will not be out of place to mention here that earlier the petitioner filed a Writ Petition No.9616/2013 which was disposed of by this Court vide order dated 19.04.2013 with the direction to the DCO, Faisalabad to decide the application of the petitioner for appointment as Lambardar in accordance with law within a period of one month. At the time when the direction was passed by this Court, the application of respondent No.3 was not available before the District Collector and he was duty bound to decide the matter after considering the candidates who had filed the application on or before the cut off/last date i.e. 13.12.2010 but he has illegally and without any lawful jurisdiction entertained the

application of respondent No.3, submitted on 19.06.2013, after the expiry of target date. Further, the District Collector has not extended the cut off date for submission of applications, as such, he could not entertain application of respondent No.3. In this regard, reliance is placed on the cases of Mrs. Rubina Anjum Vs. Punjab Public Service Commission through Chairman & 5 Others (2011 PLC (C.S.) 620), Shahid Sarwar Vs. Chairman, Admission Board/Principal, King Edward Medical College, Lahore (2005 YLR 344 DB), Muhammad Inzamam and 6 others Vs. Chairman, Board of Intermediate and Secondary Education, Lahore and 3 others (2010 YLR 1525) and Shazia Munawar Vs. Punjab Public Service Commission through Secretary, Lahore (PLD 2010 Lahore 160 DB)

7. According to Rule 17 (2) and (3) of the West Pakistan Land Revenue Rules, 1968, after receiving the proposal regarding the appointment of Lambardar from the Tehsildar, the Collector shall hold Jalsa-e-Aam in revenue estate and submit his report and made recommendations to the District Collector who shall give an opportunity of hearing to all the candidates, give his own findings on the report and recommendations of the Collector and then pass orders regarding the selection of the candidate. Rule 17 (2) and (3) of the West Pakistan Land Revenue Rules, 1968 is reproduced as under:-

“17. Matters to be considered in the first appointment.

(2) On receipt of a proposal regarding the appointment of a headman from the Tehsildar, the Collector shall hold “Ijlas-e-Aam”, in the Revenue Estate and submit to the District Collector his report and recommendations concerning each item under sub-rule (1) and the marks awarded to each candidate.

(3) On receipt of a report and recommendations of the Collector, the District Collector shall give an opportunity of hearing to all the candidates, give his own findings on the report and recommendations of the Collector and pass orders regarding selection of the candidate keeping in view the marks obtained by each candidate according to the criteria laid down in sub-rule (1).”

In this case, the Assistant Commissioner after agreeing with the proposal and recommendations of the Tehsildar forwarded the case to the District Collector for the appointment of Lambardar who was legally bound to decide the matter after considering the report and recommendations of the Collector but astonishingly he by brushing aside the legal procedure not only entertained the application of respondent No.3 but also appointed him as Lambardar inspite of the fact that respondent No.3 has not filed application for appointment as Lambardar on or before the cut-off date i.e. 13.12.2010. The authorities are bound to discharge their duties according to the law. It is a settled principle of law that when law requires that a thing to be done in a particular manner it has to be done in that way, otherwise it would not have any sanctity in the eye of law. Reliance is placed on the cases of Ignees Maria & Another Vs. District Coordination Officer, District Bahawalnagar & 2 Others (2012 PLC (CS) 772) and International College of Commerce Vs. University of the Punjab (PLD 2004 Lahore 335).

8. Under Rule 17 (2) and (3) of the West Pakistan Land Revenue Rules, 1968, the Tehsildar and Collector have the authority to receive the applications for appointment as Lambardar from the candidates and the District Collector has no unbridled authority to entertain directly the application of any candidate after the cut off date.

Respondent No.3 was not a candidate for the post of Lambardar before the expiry of cut-off date, as such, he should not be considered and appointed as Lambardar. Further, there is no provision in the West Pakistan Land Revenue Rule which authorizes the District Collector to receive application of his own after lapse of more than two and half years from the alien who has not filed application for the post of Lambardar within stipulated period. It is also important to mention here that respondent No.3 was the grandson of the deceased Lambardar and his father had also submitted the application for the post of Lambardar before the expiry of cut-off date which means that respondent No.3 was well aware about the last date of submission of the applications for the post of Lambardar, as such, his application was wrongly entertained by the District Collector after lapse of more than two and half years.

9. The petitioner filed a Writ Petition No.16451/2013 before this Court challenging the order dated 24.06.2013 passed by the District Collector, Faisalabad whereby he accepted the application of respondent No.3 for considering his name for appointment as Lambardar which was disposed of vide order dated 03.10.2013 with the direction to respondent No.1 to firstly decide the question whether the application of respondent No.3 can be received at belated stage, and he can be considered for appointment and thereafter decide the matter for the appointment of Lambardar. The operative part of the said order is reproduced as under:-

“5. In order to resolve the controversy at hand, the Respondent No.1 is directed to first decide upon the application of the Respondent No.3 so as to determine whether he can move the application and whether he can be considered for appointment at this stage, within a period of 15 days on the receipt of certified copy of this order. Thereafter he has to decide upon the matter of appointment of the Lambardar pending before him within a period of 30 days strictly in accordance with law.”

Respondent No.1 has not decided the matter in issue according to the direction passed by this Court in Writ Petition No.16451/2013 vide order dated 03.10.2013, as such, the orders passed by the revenue authorities are patently illegal and against the direction passed by this Court in the said writ petition as well as against the provisions of Rule 17 (2) and (3) of the West Pakistan Land Revenue Rules, 1968.

10. In view of above, this writ petition is **allowed**. The orders dated 30.01.2014, 25.06.2014 and 30.04.2015 passed by the District Collector Faisalabad, the Commissioner Faisalabad Division, Faisalabad and the learned Member (Consolidation), Board of Revenue, Punjab respectively are hereby set aside. Case is remanded to respondent No.1 who shall decide the matter in issue after considering the candidates who submitted their applications before the expiry of cut off date after hearing the parties strictly on merits and in accordance with law.

(CH. MUHAMMAD IQBAL)
JUDGE

Approved for Reporting.

JUDGE